

2:00 PM

LINE 4

24-CLJ-05405

NAVY FEDERAL CREDIT UNION VS. JEFF P. SPRANZA

NAVY FEDERAL CREDIT UNION
JEFF P. SPRANZA

REA STELMACH

MOTION TO ENTER JUDGMENT PURSUANT TO CCP § 664.6

TENTATIVE RULING:

The unopposed Motion to Enter Judgment Pursuant to CCP § 664.6 (the “Motion”) brought by Plaintiff Navy Federal Credit Union is DENIED without prejudice.

In the notice of motion, plaintiff put the date of July 14, 2026, as the hearing date. Then, the clerk’s office changed the hearing date to August 25, 2026.

The court file shows a proof of service of the Motion filed on May 28, 2026, declaring service of the Motion upon defendant on May 29, 2026. The proof of service attached to the notice of motion is dated the day after the pleading was filed, which cannot be accurate. Further, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Thus, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the Motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-07415

GINA ASUZANO VS. MICHAEL STONE, ET AL.

GINA ASUZANO
MICHAEL STONE

JONAH A TOLENO
PRO SE

ORDER TO SHOW CAUSE WHY THE ANSWER OF THE ENTITY DEFENDANTS SHOULD NOT BE STRICKEN AND
DEFAULT ENTERED IN FAVOR OF PLAINTIFF AND AGAINST ENTITY DEFENDANTS

TENTATIVE RULING:

On April 21, 2026, this court heard plaintiff Gina Asuzano's motion to strike defendants One Trade LLC and One Trade's answer to plaintiff's complaint. On April 20, 2026, the court issued the following tentative ruling, which was not opposed and was therefore, adopted at the hearing:

Plaintiff's unopposed motion to strike is DENIED, without prejudice. The court agrees with plaintiff's argument, but provides an opportunity for the business entity defendants to obtain counsel.

Corporations and other business entities may not represent themselves in court but must be represented by licensed counsel. (Bus. & Prof. Code, § 6125; *Birbrower, Montalbano, Condor & Frank v. Superior Court* (1998) 17 Cal.4th 119, 128-130; *Merco Constr. Eng'rs, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724, 730; *Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 (*CLD Construction*).)

On November 14, 2025, defendant Michael Stone filed an answer on behalf of himself and defendants One Trade LLC and One Trade, a corporation (One Trade Corp.). According to the Complaint, Stone is founder, principal, and sole manager of One Trade LLC and is the founder and sole director of One Trade Corp. (Complaint, ¶ 4.) He does not provide a State Bar number on the answer or otherwise demonstrate that he is an attorney.

Plaintiff has moved to strike the answer as to defendants One Trade LLC and One Trade Corp. (the entity defendants) on the basis that those defendants are not represented by counsel, which renders their answers a nullity.

A similar situation was addressed *CLD Construction, supra*, 120 Cal.App.4th 1141 There, the plaintiff corporation filed a complaint in propria persona. (*Id.*, at p. 1144.) The trial court granted a motion to strike the complaint, without leave to amend, on the basis that the corporation filed it without representation and it was therefore a nullity. (*Id.*, at p. 1145.) The Court of Appeal reversed the ruling, holding that "it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court." (*Id.*, at p. 1149.) The Court of Appeal further explained: "At such an early stage, denial of a motion to
